

1 ENGROSSED HOUSE
2 BILL NO. 3453

By: Staires, Wilk, and Menz of
the House

3 and

4 Reinhardt of the Senate

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8 An Act relating to eminent domain; establishing
9 burdens of proof; providing for award of attorney
10 fees and costs to prevailing property owner;
11 providing for codification; and providing an
12 effective date.

13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 42 of Title 27, unless there is
16 created a duplication in numbering, reads as follows:

17 A. In any judicial condemnation proceeding, other than those
18 authorized by Section 7 of this title, or any proceeding authorized
19 under Title 52 of the Oklahoma Statutes, the owner of an interest in
20 property sought to be condemned shall be entitled, through the
21 timely filing of an exception to the report of the commissioners in
22 such proceeding, to a hearing on the issues of public use or
23 necessity of the taking. At any such hearing, the condemning
24 authority shall bear the burden of proving by a preponderance of the

1 evidence that the proposed taking is for a public use authorized by
2 law, and that the property sought to be taken is reasonably
3 necessary to accomplish that public use. The burden of proof shall
4 remain with the condemning authority at all times, and a resolution
5 or declaration of necessity from the condemning authority shall not,
6 in and of itself, be conclusive or sufficient evidence of necessity.

7 B. If, upon a hearing on public use or necessity, the
8 condemning authority shall fail to establish its right to condemn
9 the property, or any part thereof, the property owner shall be
10 entitled to an award of reasonable attorney fees, costs, and expert
11 witness fees, to be taxed and collected as costs in a civil action.

12 SECTION 2. This act shall become effective November 1, 2026.

13 Passed the House of Representatives the 25th day of March, 2026.

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Presiding Officer of the House
of Representatives

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18 Passed the Senate the ____ day of _____, 2026.

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Presiding Officer of the Senate
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